

Examined the appeal for reconsideration filed by Ms. A.A.A., through the EUROPEAN COMMISSION MARKET INTERNAL EXCHANGE SYSTEMS (IMI-Austria), (the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection in procedure AI/00289/2023, for violation of the provisions of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI) and based on the following:

FACTS

FIRST: On 11/10/23, the Director of the Spanish Agency for Data Protection issued a Resolution of Archiving of Actions in procedure AI/00289/2023, opened against the entity CAIXABANK, S.A., with CIF: A08663619, owner of the website, ***URL.1, for the alleged violation of Article 22 of the LSSI. In said archiving resolution, this Agency (AEPD) stated that, according to the evidence available at that time, the characteristics found in the "Cookie Policy" of the website in question did not contradict the provisions of Article 22 of the LSSI.

The resolution was notified to the EUROPEAN COMMISSION MARKET INTERNAL EXCHANGE SYSTEMS (IMI-Austria) on 13/10/23, and on 22/12/23 to Ms. A.A.A., through the Single Edict Board as stipulated in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as recorded in the file.

SECOND: As proven facts of the aforementioned procedure, the following was recorded:

In the verification carried out by this Agency on 19/09/23 on the website, ***URL.1, the following characteristics regarding its "Cookie Policy" were documented, considering that the update of the Guide on the use of cookies to adapt it to the Guidelines 03/2022 on misleading patterns of the European Data Protection Committee (EDPC) would be implemented on 11/01/24. Meanwhile, the criteria set out in the Guide on the use of cookies published by the AEPD in 2020 would continue to apply:

- a) Regarding the use of non-essential cookies without prior user consent, it was verified that, upon entering the main page and without taking any action on it, 3 cookies were used, two of which were detected as strictly necessary ("utag_main" and "userAgentInfo") and another (_bg_cxbnk_fpcachecc), whose purpose could not be detected.
- b) Regarding the cookie information banner present in the first layer, it was considered that its format and the information provided did not contradict the provisions of the LSSI.
- c) Regarding consent to the installation of cookies on the terminal equipment, it was verified that, although there was no button in the first-layer information banner that allowed rejecting all cookies that were not technical or necessary, it was possible to reject them all at once through the control panel or to do so granularly, and therefore it was considered that the management of non-technical or necessary cookies by the website did not contradict the provisions of the LSSI.
- d) Regarding the possibility of withdrawing previously granted consent for the use of cookies, it was verified that it was indeed possible to modify such consent at any time during web browsing, through the link <>, present at the bottom of the website, and therefore, it did not contradict the provisions of Article 22 of the LSSI.

THIRD: On 14/11/23, a written appeal for reconsideration was received by this Agency, presented by the appellant, in which the following was stated:

"FIRST – Complaint

On August 11, 2021, this party filed a complaint with the Austrian data protection supervisory authority (hereinafter, DSB), against CaixaBank, S.A. (hereinafter, the controller or CaixaBank), considering that:

- I. The rights of the interested party, conferred by a. Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter, GDPR) and b. the national transposition of Directive 2002/58/EC of the European

Parliament and of the Council of July 12, 2002, concerning the processing of personal data and the protection of privacy in the electronic communications sector (hereinafter, ePrivacy Directive), which, concerning the complaint, is Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter, LSSI) when visiting the website ***URL.1/particular/home/particulares_es.html owned by the controller on January 25, 2021, were violated.

II. The consent banner for installing cookies or using other technologies on the visitor's device was designed and configured in such a way that the interested party did not provide valid consent, in accordance with current legislation.

Consequently, the processing of personal data lacks legal basis.

III. In particular, the controller used a consent banner with a misleading design, offering a. the option to reject consent only in the second layer of the banner after selecting the link "CONFIGURE OR REJECT ITS USE," while the option to accept was available in the first layer (Type A infringement); b. a simple link...

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to access, in a second layer, the option to refuse consent, when the option to consent was visually highlighted through an interactive button (Type C infringement); and c. a highlighted option to consent, without showing an option for the withdrawal of consent that provides the same ease (Type K infringement).

In consideration of the above, this party requested (i) an investigation by the competent supervisory authority, (ii) that the competent supervisory authority order the controller to cease processing personal data under Article 58(2)(f) GDPR, and (iii) that the competent supervisory authority order the controller to delete their personal data in accordance with Article 17 GDPR and the notification of such deletion according to Article 19 GDPR.

Various files were attached, including a screenshot showing the consent banner at the time of the interested party's visit, a HAR file that allows for a detailed reconstruction of this party's visit, and a file with more than one hundred cookies that had been installed on the device of the represented person during their visit.

SECOND – Submission of the complaint to the AEPD

After contacting the DSB on May 16, 2023, to obtain information about the status of the processing of the complaint, said authority informed on June 1, 2023, that it was awaiting a response from the Spanish Data Protection Agency (hereinafter, AEPD), which apparently considered itself the main supervisory authority.

THIRD – Resolution of the AEPD

On October 11, 2023, the AEPD issued the resolution being appealed in case file EXP202307481 (AI/00289/2023).

The AEPD based its decision on its own visit to the controller's website on September 19, 2023.

Referring to Guidelines 03/2022 on misleading patterns from the European Data Protection Board (hereinafter, EDPB), to the AEPD's Guide on the use of cookies published in 2020 (hereinafter, the Guide), and to the applicable provisions of the LSSI, the AEPD did not find an infringement of the regulations it considers applicable and proceeded to archive the complaint. This resolution was notified to this party on 10/13/23. The following facts apply:

LEGAL GROUNDS

PRELIMINARY – Statement of Intent

This party was surprised by the archiving of the complaint. We believe, without a doubt, that in this case it constitutes an infringement of data protection regulations. We aim to reach a resolution that reflects this circumstance and that also compels the controller to comply with its obligations.

This party would appreciate a reevaluation of the criteria of the appealed resolution to avoid the filing of contentious-administrative appeals, as well as the saturation of the judicial system.

Furthermore, this party considers that various procedural infringements occurred during the processing

of the complaint. We detail below the reasons for our viewpoint.

A. PROCEDURAL ASPECTS

FIRST – Lack of notification by the DSB

1. This party filed a complaint, under Article 77(1) GDPR, with the DSB, the Austrian supervisory authority, on August 11, 2021. This authority apparently considered that the AEPD is the main supervisory authority, according to Article 56(1) GDPR, forwarding the complaint to the AEPD through the IMI system in June 2023.
2. Remarkably swiftly, the AEPD adopted and notified its resolution in early October 2023. However, according to Article 60(8) GDPR, it is the DSB that should have adopted and notified the resolution to the interested party in this case. This one-stop-shop mechanism was established to safeguard the rights (particularly linguistic rights and the right to effective judicial protection in their forum) of the represented party.
3. In this case, the AEPD should not have adopted a decision that supposedly becomes final within a specified period from its notification, but rather from the notification of the decision by the DSB to the represented person. Were it not for their representative, in this case, the interested party would even lack the means to understand the language of the resolution being appealed. In other cases, a complainant would not understand the resolution adopted – it cannot be expected that someone filing a complaint with a foreign supervisory authority against a controller established in Spain understands the Spanish language.
4. Therefore, the resolution was issued (and notified) by a manifestly incompetent authority due to territorial jurisdiction, as it is the DSB that must adopt and notify said resolution according to Article 60(8) GDPR, and thus it is null and void, according to Article 47(1)(b) LPACAP.
5. Notwithstanding the above, and in case the AEPD (and the DSB) considers that this is not a case of cross-border processing, this party presents below other reasons why it believes that the criteria adopted by the AEPD does not comply with the applicable regulations.

SECOND – The AEPD did not consider the facts of the complaint.

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6. The AEPD did not consider the specific circumstances of this party's visit to the website, as detailed in the complaint. Instead, it appears that the AEPD decided based on the banner that appeared on the responsible party's website during its own visit ("In the check carried out by this Agency on the website in question, it was confirmed that [...] – page 10 of the contested resolution).
7. Although it is commendable that the AEPD reviewed aspects of the website that were not mentioned in the complaint, such as the installation of cookies prior to consent (page 10 of the contested resolution) or the information text of the banner (page 11 of the contested resolution), it should not be forgotten that the supervisory authority must provide an effective response to the individual situation of the interested party. Thus, Recital 141 of the GDPR emphasizes in its first sentence that the rights of the interested party must be protected: "Every data subject must have [...] the right to effective judicial protection [...] in the event that the supervisory authority [...] does not act when necessary to protect the rights of the data subject."
8. Article 77(1) of the GDPR also refers specifically to the personal data processed concerning the interested party: "[...] if he or she considers that the processing of personal data concerning him or her infringes this Regulation."
9. Furthermore, when assessing the admissibility of a complaint, in circumstances where Article 65(3)(b) of Organic Law 3/2018, of December 5, on the protection of personal data and the guarantee of digital rights (LOPDGDD) applies, the AEPD must consider the individual case of the interested party to assess whether their rights are fully guaranteed.
10. It should be added that Advocate General Priit Pikamäe in the Conclusions in the joined Cases C-26/22 and C-64/22, SCHUFA, convincingly highlights in paragraphs 37 to 45 that a complaint is not a request (see particularly paragraph 45). In practice, the AEPD must "remedy the identified

insufficiency” in the situation of the interested party, as required by the CJEU in the Judgment in Case C-311/18, Schrems II, paragraph 111.

11. Therefore, the individual circumstances regarding the complaint submitted by the interested party must be taken into account. This interpretation is even more pertinent in light of the objective established in Article 1(2) of the GDPR, which is the protection of natural persons, “[...] and, in particular, their right to the protection of personal data.”

12. Although the AEPD materially examined the consent banner of the criticized website within the framework of the referenced procedure, it did not take into account the facts that occurred during the visit of the represented person. It is evident that the AEPD can also check the website on its own to corroborate the version of the interested party (and, where appropriate, to review other aspects ex officio). However, the relevant facts to respond to the complaint must be those resulting from the factual situation presented in the complaint.

13. In line with what we have just stated, the European Data Protection Board (hereinafter, the EDPB) states that supervisory authorities must adopt a “legally challengeable act” having considered the facts mentioned in the complaint and deciding based on them.

14. The contested resolution is annulable according to Article 48(1) LPACAP.

15. Even in the case of considering that the result of examining the consent banner would have been the same taking into account the situation of the represented person, the AEPD has not responded to what this party requested, as outlined below.

THIRD – The AEPD did not consider the petitum of the complaint

16. This party requested various measures to be adopted by the AEPD in its complaint (see Fact One). The formulated petitum determines what is specifically requested and underscores the need for an evaluation of this party's individual situation. ***URL.2; ECLI:EU:C:2020:559 3 Internal EDPB Document 02/2021 on the duties of supervisory authorities in relation to alleged GDPR infringements, paras. 49, 68; https://edpb.europa.eu/system/files/2022-07/internal_edpb_document_022021_on_sas_duties_in_relation_to_alleged_gdpr_infringements_en.pdf

17. In light of the configuration of the complaint under Article 77(1) of the GDPR as a “genuine administrative appeal,” it is beyond doubt that the AEPD should have responded to what this party requested. This directly aligns with the provisions of Article 88(2) LPACAP: “In proceedings processed at the request of the interested party, the resolution shall be consistent with the requests made by him or her [...].”

18. However, the resolution of the AEPD does not respond to the requests of this party, adopting a decision that remains primarily abstract.

19. The specific case of the represented person was not investigated. Therefore, it was not determined whether the processing of their personal data was lawful. Hence, it could not be decided whether an order to cease processing their personal data or the deletion of their personal data was (or was not) appropriate.

20. Apart from the above, the resolution does not formally respond to what this party requested either. It simply omits any reference to the requests made.

21. The AEPD focused on its own visit to evaluate the responsible party's website, forgetting the requests of this party, which can be classified as incongruence extra petita partium (beyond what was requested).

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22. The resolution must be annulled in accordance with Article 48(1) LPACAP.

23. Evidently, responding to the request made by this party does not prevent the AEPD from adopting other measures or conducting investigations ex officio.

B. MATERIAL ASPECTS

FOURTH – The GDPR is applicable

24. In the contested resolution, the AEPD limits itself to applying the LSSI and its 2020 Guide without considering the e-Privacy Directive or the GDPR.

25. However, the initial complaint from this party details (and includes relevant annexes) the violations of the current regulations, particularly the provisions of the GDPR.

26. As can be inferred from the files submitted along with the complaint, the responsible party processed personal data of the represented person: In particular, the alphanumeric identifiers contained in the cookies (value of the cookies) detailed in Annex 6 of the complaint. Therefore, the GDPR is applicable (Article 1(2) GDPR).

27. The DSB also considered that the GDPR was applicable as it forwarded the complaint to the AEPD as the main supervisory authority. The e-Privacy Directive, on the other hand, does not provide a mechanism for cooperation among the different authorities responsible for ensuring its compliance.

FIFTH – The AEPD applies an erroneous criterion

28. As we have already stated above, the AEPD limits itself in the resolution here contested to applying the LSSI and its 2020 Guide.

29. As is well known, national transpositions of Directives must be interpreted in light of what is provided therein. In this regard, it is worth recalling what is stated in Recital 66 of Directive 2009/136/EC, which amended the e-Privacy Directive in 2009 regarding the possibility of refusing consent: “It is therefore essential that users receive clear and comprehensive information when they take an action that may lead to such storage or access. The way in which information is provided and the right to refuse must be as simple as possible for the user.”

30. Article 22(2) LSSI, which arises precisely from Article 5(3) of the e-Privacy Directive, must be interpreted in accordance with this Recital that reveals the legislator's intent.

31. From a joint reading, it is clearly deduced that a responsible party, when requesting consent for the installation of cookies or other comparable technologies, must offer the “simplest possible” way for the user to refuse such consent.

32. A consent banner that hides the option to refuse consent in the second layer (while offering a highly highlighted option to consent in the first layer) is, under no circumstances, the “simplest possible” way to refuse such consent. It is more than evident that the “simplest possible” way is to offer that option in the first layer of the banner, with the same prominence as the option to consent. In this way, it can be selected, with a (1) simple action, whether to accept or refuse consent.

33. What cannot be done in this case is to interpret the LSSI (and the GDPR) in accordance with the AEPD's Guide. The hierarchical principle inherent in the legal system prescribes just the opposite: The 2020 cookie Guide must be interpreted in accordance with the LSSI (and the GDPR), which are higher-ranking norms – and not the other way around, as occurred here! At the risk of stating the obvious, the legal value of the Guide seems to be merely indicative and not even binding.

34. In addition to the above, the provisions of the GDPR must also be taken into account. On the one hand, consent requested under Article 22(2) LSSI must comply with the requirements established in the GDPR (see Article 2(f) e-Privacy Directive). On the other hand, any processing of personal data subsequent to the storage or access to the device is subject to the GDPR (see Opinion 5/2019 of the EDPB).

35. We have already stated that even if we only follow the criterion of the e-Privacy Directive, an option to refuse consent must also be prominently offered in the first layer of the consent banner. It becomes even clearer when we consider the principle of fairness and transparency of Article 5(1)(a) GDPR: How will the request for consent be transparent if, from the outset, only the option to consent is offered? How will the responsible party be fair if they hide the option to refuse my consent in a sub-menu? Obstructing the free choice between two options is nothing more than an opaque and unfair act towards the represented person (and, in reality, any user of the website). Deceiving the represented person by creating the impression that they can only consent, unless they dedicate their valuable and limited time to searching for other options, can only be deemed unfair.

36. These considerations also lead to the conclusion that the option to consent and the option to refuse consent, when present in the same layer, must be visually presented under the same conditions (same size, design, contrast, color). A simple link, as on the responsible party's website, does not

constitute an element perceived as interactive, but rather as an element leading to more information (as is common on the internet) – therefore, it is precisely the opposite of a button that clearly indicates.
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that with a single click consent can be given. In summary, a link is not sufficient to guarantee a true choice, as there are not two equivalent options and, therefore, it is also opaque and unfair.

37. Finally, the withdrawal of consent, which according to Article 7(3) GDPR must be as easy as giving consent, was also not guaranteed on the website of the data controller.

38. The link in the footer requires particularly careful attention. It will only be discovered by someone who is well-versed in data protection legislation or who has searched through the numerous pieces of information in the footer (i.e., the "fine print").

39. Furthermore, the name of the link "Cookie Policy" does not necessarily make sense even to a data protection specialist. Is it a document? How does one know that it includes the option to withdraw consent?

40. Lastly, it should be noted that the consent banner occupies a large part of the page. Visual interaction with the interested party is forced. A footer link is the complete opposite. Therefore, no data controller will voluntarily request consent (which is undoubtedly expected and intended to be obtained) by offering a consent option in the fine print.

41. To avoid unnecessary repetitions, we refer to the initial complaint, where we detailed more arguments regarding the violations of types A, C, and K.

42. In summary, the data controller did not obtain valid consent and lacks a legal basis to process the personal data of this party. The violations of the applicable regulations (LSSI/Directive ePrivacy, GDPR) persist, as the data controller has not deleted the personal data of this party that continues to be processed unlawfully.

43. From what is stated in Legal Grounds Fourth and Fifth, it follows that the criterion adopted in the contested resolution is contrary to the legal system and must be annulled.

SIXTH – The AEPD contradicts itself

44. In its resolution, now contested, the AEPD does not mention the "Report on the work carried out by the Cookie Banner Taskforce" dated January 17, 2023 (hereinafter, the Report). In the preparation of this report, which reflects the "common denominator" agreed upon by the supervisory authorities of the Member States regarding consent banners, the AEPD expressed support for an option to reject consent in the first layer. Furthermore, according to the updated version of the AEPD's Guide on the use of cookies (from July 2023), the design of the banner in question would violate the applicable regulations for not offering an option to reject consent in the first layer.

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5 EDPB, Report on the work undertaken by the Cookie Banner Taskforce, p. 3;

***URL.3

6 Nataliia Bielova, Cristiana Santos, Colin M. Gray (2023), Two worlds apart! Closing the gap between regulating EU consent and user studies, 37 Harvard Journal of Law & Technology [pending publication], p. 15.

45. Nevertheless, in the contested resolution, the AEPD adopted a different criterion, based on its 2020 Guide.

46. Aside from the erroneous criterion of the 2020 Guide, the argument that the adoption period for the updated Guide must be respected is unconvincing. It would be simpler and more convenient for the AEPD to adopt a resolution requiring the data controller to change its banner according to the provisions of the 2023 Guide, rather than doing so months later. This would also be beneficial for the data controller, who would have clear instructions to follow.

That the AEPD orders the adaptation of the banner does not imply that a sanction must also be imposed. It simply guarantees compliance with the regulations.

47. Instead of relying on an outdated and antiquated Guide, as proposed by the data controller with whom the AEPD maintains an open bank account, the AEPD should consistently demand the criterion it already defended months ago within the EDPB.

In light of the above, and in accordance with the mentioned provisions, this party

REQUESTS

I. That the RECURSO DE REPOSICIÓN (Appeal for Reinstatement) against the resolution of the Director of the Spanish Agency for Data Protection dated October 11, 2023, within the framework of the procedure with file number EXP202307481, be deemed filed in due time and form, and, after its admission and the carrying out of any necessary investigative actions, in accordance with the applicable procedural and material norms, the contested resolution be annulled for the reasons set forth in the legal grounds of this appeal and that the procedure continue.

LEGAL GROUNDS

I

Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the Law

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39/2015, of October 1, of the Common Administrative Procedure of Public Administrations (LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

First: The appellant alleges in the section "First, points 1-5" of the grounds for appeal in their submission that the resolution of dismissal issued by this AEPD was made by a manifestly incompetent authority due to territorial reasons, as it should have been, as stated in the submission, the Austrian data protection supervisory authority (DSB) that adopted such a resolution in accordance with Article 60(8) GDPR.

Meanwhile, in the section "Fourth, points 24 to 27," the appellant states that "the AEPD applies an erroneous criterion as it limits itself to applying the LSSI and its 2020 Guide without consideration of the e-Privacy Directive or the GDPR; however, the initial complaint details (and relevant annexes) the violations of the current regulations, particularly the provisions of the GDPR."

To respond to these two issues, we must start by indicating that in Spanish law the "Principle of Normative Speciality" applies, which refers to the fact that a special law prevails over a general law. This principle does not imply that, in the event of the application of both norms (one general and one special), the first is repealed, but rather that both norms remain simultaneously in force, although the special law will be applied preferentially to the general law in those cases contemplated therein. Well, regarding the case at hand, there is such a coincidence, that is, in the Spanish Legal System, two norms coexist, one of a general nature such as the GDPR and another of a special nature, such as the LSSI.

If we observe what Article 1 of the GDPR establishes, its object is as follows:

1. This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data.
2. This Regulation protects the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data.
3. The free movement of personal data within the Union may not be restricted or prohibited for reasons related to the protection of natural persons with regard to the processing of personal data.

Meanwhile, the object of the LSSI, established in its Article 1, indicates that:

1. The purpose of this Law is to regulate the legal regime of information society services and electronic contracting, regarding the obligations of service providers, including those acting as intermediaries in the transmission of content over telecommunications networks, electronic commercial

communications, pre- and post-contractual information for electronic contracts, the conditions relating to their validity and effectiveness, and the sanctioning regime applicable to information society service providers.

2. The provisions contained in this Law shall be understood without prejudice to what is established in other state or regional regulations outside the coordinated regulatory scope, or that aim to protect public health and safety, including the safeguarding of national defense, consumer interests, the tax regime applicable to information society services, the protection of personal data, and the regulations governing competition defense.

For its part, Article 2 of the aforementioned regulation establishes that:

1. This Law shall apply to information society service providers established in Spain and to the services provided by them. A service provider shall be understood to be established in Spain when its residence or registered office is located in Spanish territory, provided that they coincide with the place where the administrative management and direction of its business is effectively centralized.

Otherwise, attention shall be paid to the place where such management or direction is carried out.

Therefore, in application of the principle of normative speciality, the specific norm, that is, the LSSI, should be applied over the general norm, the GDPR, given that the entity CAIXABANK has its headquarters in Spanish territory, as well as the domain of its website (.es).

Regarding the competence to know the case, Article 43.1 of the LSSI establishes: "(...) Likewise, it shall be the responsibility of the Data Protection Agency to impose sanctions for the commission of the infringements typified in Articles 38.3 c), d) and i) and 38.4 d), g) and h) of this Law (...)" and what is established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

Meanwhile, Article 63.2 of the LOPDGDD determines that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

And the fourth additional provision of said regulation establishes, regarding the competences attributed to the AEPD by other laws, that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Data Protection Agency must process in exercise of the competences attributed to it by other laws."

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Therefore, in the present case, the AEPD is competent to hear the claim based on the provisions established in Article 43.1 of the LSSI, Article 63.2 of the LOPDGDD, and the fourth additional provision of said regulation. Meanwhile, regarding the application of the LSSI to the detriment of the RGPD, the former regulation must be applied based on the principle of normative speciality.

Second: The appellant alleges in sections "Second, points 6-15" and "Third, points 16-23," and section "Fifth, points 28 to 43" of the grounds for appeal in essence that, "the AEPD did not consider the specific circumstances of the visit to the appellant's website, relying solely, for the resolution of the file, on the information banner that appears on the website, without responding to what was requested in the complaint, forgetting the requests of the party and invoking for this the provisions of Recital 141 of the RGPD: 'Every interested party must have [...] the right to effective judicial protection.' The AEPD focused on its own visit to evaluate the website of the data controller, requesting that the resolution be annulled in accordance with Article 48(1) LPACAP."

Well, let us recall that in the complaint filed by the appellant on 11/08/21 before the Austrian data protection supervisory authority (DSB) against CaixaBank, S.A., it stated as allegedly sanctionable facts, reiterated in the appeal document (points "First" and "Second" of the Facts) that, "the consent banner for installing cookies or using other technologies on the visitor's device was designed and configured in such a way that the website visitor could not give valid consent since said banner presented a misleading design, offering the option to refuse consent only on the second layer while the option to accept cookies was available on the first layer highlighted through an interactive button."

In the case at hand, the appellant stated in their complaint dated 11/08/21 as irregular facts upon accessing the website, the following:

- By using this banner, the controller attempted to establish a legal basis under Article 6, paragraph 1, of the RGPD to process the personal data of the complainant and a legal basis under Article 5, paragraph 3, of the Directive on privacy and electronic communications (2002/58/EC) (or the relevant national implementation) and Article 6, paragraph 1, letter a), of the RGPD to store information or access information stored on the complainant's terminal equipment.
- Furthermore, the complainant identified data flows referring to information stored on their terminal equipment, in the sense of Article 5, paragraph 3, of the Directive on privacy and electronic communications, and contained personal data in the sense of Article 4, paragraph 1, of the RGPD: And as a request, they claimed that the competent supervisory authority investigate the complaint in accordance with Article 58, paragraph 1, of the RGPD, and order the data controller to cease all data processing activities; order the deletion of all relevant personal data and communicate such deletion to the recipients to whom the data have been communicated.

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Well, as we indicated in the previous point, the "Principle of Normative Speciality" applies in Spanish Administrative Law, which states that in the event that two norms govern the same area, the special law, in this case, the LSSI, will take precedence over the general law, that is, the GDPR, in those cases contemplated in that norm. Based on this, this Agency based its resolution on the following:

a) Regarding the 3 cookies detected upon accessing the website without the prior consent of the user, it was found that the purpose of two of them was technical in nature ("utag_main" and "userAgentInfo"), while the purpose of the third detected cookie (__bg_cxbnk_fpcachecc) could not be identified. Therefore, based on the evidence obtained, the use of cookies by the website in question, prior to the user's consent, does not contradict what is stipulated in the specific norm that governs in Spain, the LSSI.

b) Regarding the cookie information banner that appears on the main page of the website when accessed for the first time, the resolution of this Agency was based exclusively on what is stipulated in the obligations provided in the second section of Article 22 of the LSSI and its relationship with the GDPR and the LOPDGDD, taking into account the special nature of the regulation established in the LSSI. All of this is in accordance with the solutions proposed in the Cookie Guide, prepared by this Agency in 2020, in the version in force at the time the checks were carried out by this Agency, which are transcribed below.

In application of the applicable regulations to the case and considering the recommendations of GT29 (Article 29 Working Group), created under Article 29 of Directive 95/46/EC as an independent advisory body of the EU in matters of data protection and privacy, it recommended the use of privacy statements or notices by levels, that is, containing information in layers, so that the user could access those aspects of the statement or notice that were of greater interest to them, thus avoiding information fatigue, and without prejudice to the fact that all information could be available in one place or in a complete document (Cookie Policy) that can be easily accessed if the interested party wishes to consult it in its entirety.

Thus, this system may consist of displaying essential information in a first layer when accessing the page or application, and completing it in a second layer through a page that offers more detailed and specific information about the cookies.

In the first layer, which for greater clarity may be identified under a commonly used term (such as, for example, "cookies"), the following information would be included: a) Identification of the publisher responsible for the website. The corporate name will not be necessary, as long as their complete identifying data appear in other sections of the website (legal notice, privacy policy, etc.) and their identity can be clearly inferred from the website itself (for example, when the domain itself corresponds to the name of the publisher or the brand with which they identify themselves to the public or that name

or brand is clearly displayed on the website). b) Identification of the purposes of the cookies that will be used. c) Information on whether the cookies...

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are their own (of the website manager) or also of third parties associated with it, without the need to identify the third parties in this first layer. d) Generic information about the type of data that will be collected and used in case user profiles are created (for example, when behavioral advertising cookies are used). e) The way in which the user can accept, configure, and reject the use of cookies, with the warning, if applicable, that if a certain action is performed, it will be understood that the user accepts the use of cookies. f) A clearly visible link directed to a second informative layer that includes more detailed information, using, for example, the term "Cookies," "Cookie Policy," or "More information, click here."

This same link may be used to lead the user to the cookie configuration panel, provided that access to the configuration panel is direct, that is, the user does not have to navigate within this second layer to locate it. This information will be provided before the use of cookies, including, if applicable, their installation, through a format that is visible to the user and must be maintained until the user performs the required action for obtaining consent or its rejection. This same link may be used to lead the user to the cookie configuration panel, provided that access to the configuration panel is direct, that is, the user does not have to navigate within this second layer to locate it.

This information will be provided before the use of cookies, including, if applicable, their installation, through a format that is visible to the user and must be maintained until the user performs the required action for obtaining consent or its rejection.

As can be seen, in this example, information is provided about the use by the editor and by third parties of analytical and behavioral advertising cookies, and explicit consent is obtained from users who accept the use of cookies by clicking the button. If the "Accept cookies" button is not pressed, the user is not authorizing the use of cookies (therefore, the use of cookies is not legitimized if the user does not press the button to accept cookies and simply continues browsing). In any case, it will be necessary for the user to perform an action that can be qualified as a clear affirmative action for consent to be considered validly granted. Obtaining consent through user behavior other than an acceptance button, but consisting of a clear affirmative action, will be admissible as long as the conditions under which the behavior occurs provide sufficient certainty that informed and unequivocal consent is given and it can be proven that such behavior has taken place. In any case, merely remaining on the screen, scrolling, or browsing the website will not be considered a clear affirmative action under any circumstances.

It will be necessary for the information in the first layer to be complemented with a system or configuration panel in which the user can choose to accept or not accept cookies in a granular manner, or a link that leads to such a system or panel.

The user may also be given a third option, consisting of including two buttons, to accept or configure/reject cookies:

The "Accept" option may be replaced by equivalent terms, such as "Accept and continue," "OK," or "Accept and close." Similarly, and also as an example, the "Configure" option may be replaced by terms such as "Options," "More options," "Other options," or "Privacy settings." These options will be admissible as long as the consequences of the choice regarding the acceptance or configuration of cookies have been clearly informed.

The link or button to manage preferences must take the user directly to the configuration panel, without the need to scroll through large amounts of text looking for the information, which must remain permanently accessible.

The panel may be integrated into the second informative layer. To facilitate selection, the panel may implement two buttons, one to accept all cookies and another to reject them all, with this option being recommended the greater the number of different cookies used.

If the second or third example is used as a means of obtaining consent, a button to reject all cookies must be included in the panel, to respect the requirement that it be as easy to withdraw consent as it is to give it. For these purposes, for example, this requirement will be considered satisfied if the configuration panel includes a "Reject all cookies" button or a button to save the choice made by the user and, in this second case, it is also expressly indicated that if the user saves their choice without having selected any cookies, it will equate to the rejection of all cookies. In relation to this second possibility, it should be remembered that in no case are pre-checked boxes in favor of accepting cookies admissible. For this case of the save button, the following may be indicated:

Well, if we now check the cookie information banner on the main page of the website subject to the complaint, ***URL.1, (***URL.4) processed by this Agency on 19/09/23:

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Therefore, in the resolution to archive the file AI/00289/2023 dated 11/10/23, regarding the claimant's assertion that he reported as allegedly sanctionable facts, reiterated in the appeal letter (points "first" and "second" of the Facts), that "the consent banner for installing cookies or using other technologies on the visitor's device was designed and configured in such a way that the visitor to the website could not provide valid consent since said banner presented a misleading design, offering the option to refuse consent only in the second layer while the option to accept cookies was available in the first layer highlighted through an interactive button," it was considered that the existing cookie information banner in the first layer of the website in question, both in its format and in the information provided, did not contradict what is stipulated in the LSSI, as it was in accordance with example 3 of the Cookie Guide.

In another vein, the appellant also states in point "second" of his appeal letter that on 16/05/23 he contacted the Austrian data protection authority to obtain information about the status of the processing of the complaint, and that authority informed him on 01/06/23 that it was awaiting a response from the Spanish Data Protection Agency.

It should be noted that it was not until 02/06/23 that this Agency received, with entry registration number: REGAGE23e00035235184, the complaint letter through the EUROPEAN COMMISSION INTERNAL MARKET EXCHANGE SYSTEMS (IMI - Austria).

Third: The appellant states in section "Sixth, points 44 to 47" that "The AEPD contradicts itself as it 'does not mention the Report on the work carried out by the Cookie Banner working group of January 17, 2023, and according to the updated version of the AEPD's Cookie Use Guide (July 2023), the design of the banner in question would violate the applicable regulations by not offering an option to refuse consent in the first layer. However, in the contested resolution, the AEPD adopted a different criterion, based on its 2020 Guide."

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It should be noted that the Spanish Data Protection Agency has updated the Cookie Use Guide to adapt it to the Guidelines 03/2022 on misleading patterns from the European Data Protection Board (EDPB).

The European Data Protection Board published in February 2023 the Guidelines 03/2022 on misleading patterns in social networks. The Agency incorporates into the new version of the Guide the criterion of the European Committee, which states that the actions of accepting or rejecting cookies must be presented in a prominent place and format, and both actions must be at the same level, without it being more complicated to refuse than to accept. The Guide includes new examples of how these options should be displayed, providing indications such as color, size, and location where they

appear.

The criteria set forth in the Guide must be implemented by January 11, 2024, at the latest, thus establishing a transitional period of six months to introduce the necessary changes for the use of cookies. Meanwhile, the criteria outlined in the Cookie Use Guide published in 2020 will continue to apply.

And in the case at hand, since the resolution to archive the file AI/00289/2023 was issued on 11/10/23, the Cookie Use Guide published in 2020 was applicable.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the AEPD is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned Law.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the term will be adopted by the Administration without any binding to the effect of silence, as provided in Article 24.3 of the same law.

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Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having regard to the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection:

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Ms. A.A.A., through the EUROPEAN COMMISSION INTERNAL MARKET EXCHANGE SYSTEMS (IMI- Austria), against the archival resolution issued by the Director of the Spanish Agency for Data Protection on 11/10/23, in file EXP202307481 (AI/00289/2023)

SECOND: TO NOTIFY this resolution to Ms. A.A.A.,

THIRD: In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for

Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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